BY ORDER OF THE COMMANDER
HILL AIR FORCE BASE

HILL AIR FORCE BASE INSTRUCTION
31-105

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Security

INSTALLATION CURFEW

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(Major Paul D. Dinkins)

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This instruction establishes a Hill Air Force Base (AFB) Installation Curfew and provides program guidance. It implements Air Force Policy Directive (AFPD) 31-1, *Integrated Defense*. It prescribes a curfew for minors (defined as anyone under the age of 18 years) and outlines standard procedures for dealing with violations. It applies to all persons who are minors of active duty, temporary duty, retired United States military, Department of Defense (DoD) civilians, and any non-base affiliated guests sponsored on base. It does not apply to active duty military members under 18 years old. The objective of this instruction is to provide a safe and secure living and working environment for Team Hill employees, members, and their families. It brings installation policy in line with local ordinances in the surrounding communities (Layton City Ordinance 9.24.010, *Curfew*, and Clearfield City Ordinance 6-2B-21, *Curfew*). When violations do occur, it establishes procedures for dealing with offenders. This publication requires the collection and maintenance of information protected by the Privacy Act of 1974. The authority to collect and maintain the records prescribed by this instruction is 18 U.S. Code § 1382. Each form, format, or form letter prescribed by this publication which requires a Privacy Act Statement (PAS), in accordance with (IAW) Air Force Instruction (AFI) 33-332, *Air Force Privacy and Civil Liberties Program*, must have the PAS incorporated thereon or the PAS will be prominently posted and be provided by the requester prior to collecting this information. Privacy Act information taken from existing Privacy Act system of records, which authorizes blanket use of this information for this purpose, doesn't require a PAS. Collected information is "Controlled Unclassified Information." Requests to release Privacy Act information to persons or agencies outside the DoD must be IAW AFI 33-332 Privacy Act System Notice F124 AF C applies. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change*

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SUMMARY OF CHANGES

This document has been revised to clarify that it applies to all personnel residing on Hill AFB versus just Air Force personnel. Various administrative corrections were also made throughout the document.

1. General. This program is established to provide a safe and secure living and working environment for Team Hill employees, members, and their families by prescribing a curfew for minors and outlining standard procedures for dealing with violations.

2. Prohibited. Curfew is established for minors under 18 years of age. It is prohibited for any person under the age of 18 to remain out of their homes and on any sidewalks, street, alley, or in public places between the hours of 0000-0500 on any day.

2.1. Exceptions.

2.1.1. Minors accompanied by an adult responsible for the care and custody of such person.

2.1.2. Minors attending or returning directly home from school or church functions.

2.1.3. Minors attending or returning directly home from lawful entertainment, amusement, or commercial activities.

2.1.4. Minors on an emergency errand, specific business, or other activity directed by parent, guardian, or other adult having custody or care of him/her.

2.1.5. Minors engaged in legitimate employment which requires their presence at a public place during the prohibited hours.

2.1.6. Minors serving on active duty or as reservists on active orders are exempt from curfew on Hill AFB.

2.2. Minors in military dormitory areas. Minors are expressly prohibited from occupying or loitering in the area of dormitories on Hill AFB.

3. Responsibilities.

3.1. Parents and guardians. Any parent, guardian, or other person living within concurrent jurisdiction areas on base and having legal care and custody of any minor is prohibited from allowing any minor to utilize any of the sidewalks, streets, alleys, or public places on Hill AFB within the times identified in **paragraph 2**.

3.2. Persons who aid minors to violate curfew. It is prohibited for any person to assist, aid, abet, or encourage any minor to violate the provisions of the installation curfew. It is also prohibited for any person to use any influence or otherwise to entice or persuade any minor from his/her parents, guardians or other persons having charge or custody of such a minor, without the consent of such parent, guardian or custodian.

4. Program Management.

4.1. The 75th Air Base Wing Staff Judge Advocate (75 ABW/JA):

4.1.1. Reviews all cases, and their histories, and makes recommendations of disposition to the Juvenile Misconduct Review Board (Re: Hill AFB Instruction 31-118, *Juvenile Rehabilitative Program*) and/or other officials or entities, as is appropriate.

4.2. The 75th Security Forces Squadron Commander (75 SFS/CC) ensures:

4.2.1. Potential offender(s) are identified and field interviews are conducted via AF IMT 3907, *Security Forces Field Interview Data*, to determine if a violation exists.

4.2.2. Offenders determined to be in violation and who reside off-base are transported to building 408. Security Forces will notify the parent, sponsor or sponsor's first sergeant and one of the parties will be requested to pick up the offender.

4.2.3. All curfew violations are documented in the AF IMT 53, *Security Forces Blotter*.

5. Penalties. Individuals who violate this instruction face possible administrative action and/or criminal action, to include but not limited to debarment and prosecution under the UCMJ or in the United States District Court.

JENISE M. CARROLL, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 31-1, *Integrated Defense,* 21 June 2018

Layton City Ordinance 9.24.010, *Curfew*

Clearfield City Ordinance 6-2B-21, *Curfew*

AFI 33-332, *Air Force Privacy and Civil Liberties Program,* 10 March 2020

AFI 33-322, Records *Management and Information Governance,* 28 July 2021

Hill AFBI 31-118*, Juvenile Rehabilitative Program,* 18 September 2019

Adopted Forms

AF IMT 53, *Security Forces Desk Blotter,* 1 December 2000

AF Form 847, *Recommendation for Change of Publication,* 22 September 2009

AF IMT 3907*, Security Forces Field Interview Data,* 23 June 2020

Abbreviations and Acronyms

75 ABW/JA—75th Air Base Wing Staff Judge Advocate

75 SFS/CC—75th Security Forces Squadron Commander

AFB—Air Force Base

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

DoD—Department of Defense

IAW—In Accordance With

OPR—Office of Primary Responsibility

PAS—Privacy Act Statement

RDS—Records Disposition System

UCMJ—Uniform Code of Military Justice

USDCVN—United States District Court Violation Notice